

STATE OF NEW YORK

3392--A

2025-2026 Regular Sessions

IN SENATE

January 27, 2025

Introduced by Sens. GOUNARDES, SEPULVEDA, COMRIE, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Cities 1 -- recommitted to the Committee on Cities 1 in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general municipal law, in relation to interagency data sharing by agencies of a city with a population of one million or more for providing benefits, services or care coordination

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "one city act".

3 § 2. The general municipal law is amended by adding a new section
4 139-f to read as follows:

5 § 139-f. Data sharing by agencies within a local government for
6 providing benefits, services or care coordination. 1. Applicability.
7 This section shall apply to cities having a population of one million or
8 more.

9 2. Legislative intent. The legislature hereby finds, determines, and
10 declares that the effective delivery of benefits, services and care
11 coordination by a local government to its populace may be improved
12 through cooperative data-sharing arrangements that enable its agencies
13 to act, in effect, as a single coordinated entity, "one city", for such
14 purposes. The delivery of benefits, services and care coordination often
15 either requires or is buttressed by the sharing of the personal informa-
16 tion collected from individuals or households by one local government
17 agency with other local government agencies, particularly where the same
18 individual or household is known to multiple local government agencies
19 or faces complex challenges requiring cross-agency coordination to
20 effectively address a pressing need for government services, such as but
21 not limited to food, shelter, mental health services, public benefits,

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 and health care. The legislature recognizes the importance of ensuring
2 robust protections for safeguarding the privacy of the personal informa-
3 tion that individuals have entrusted to their local government while
4 also enabling its agencies to responsibly share such information with
5 each other in order to effectively deliver benefits, services and care
6 coordination to its populace. State authority for cooperative data-shar-
7 ing arrangements that enable agencies of a local government to coordi-
8 nate their activities is necessary in certain instances where laws of
9 the state of New York impose restrictions on the disclosure of such
10 personal information between local government agencies. Such cooperative
11 data-sharing arrangements can be developed and implemented with appro-
12 priate safeguards and protocols for protecting personal privacy and
13 cybersecurity.

14 3. Definitions. As used in this section:

15 (a) "Agency" means an office, position, administration, department,
16 division, bureau, board or commission, or a corporation, institution or
17 agency of government, the expenses of which are paid in whole or in part
18 from the city treasury.

19 (b) "Agent" means an authorized person who acts on behalf of or at the
20 direction of an agency.

21 (c) "Benefits" means assistance and resources that a local government
22 provides to individuals in order to meet basic needs, such as but not
23 limited to food, shelter, financial security, education, and health
24 care, and other types of assistance or resources that may help improve
25 an individual's quality of life.

26 (d) "Care coordination" means coordination or case management of bene-
27 fits and services.

28 (e) "Human services agency" means an agency that delivers a service to
29 individuals or groups of individuals for the purpose of improving or
30 enhancing such individuals' health or welfare in circumstances including
31 but not limited to: domestic violence, teenage pregnancy, health prob-
32 lems, child abuse, nutritional deficiencies, suicide, hunger, unemploy-
33 ment, lack of suitable shelter, crime, drug and alcohol abuse and pover-
34 ty.

35 (f) "Personal information" means information collected by an agency
36 concerning an individual that, because of name, number, symbol, mark or
37 other identifier, can be used to identify that individual, and includes
38 data contained in an agency record about the individual's background,
39 circumstances, needs and services that have been provided to the indi-
40 vidual.

41 (g) "Services" means functions a local government performs for the
42 purpose of assisting individuals, including but not limited to educa-
43 tional efforts and outreach by a local government about benefits,
44 services, and care coordination.

45 4. Disclosure of personal information among agencies. Subject to any
46 restrictions imposed by federal law relating to the confidentiality of
47 personal information, an agency may disclose the personal information of
48 individuals that would otherwise be restricted from disclosure to anoth-
49 er agency or agent thereof for the limited purpose of:

50 (a) providing benefits, services, or care coordination to individuals;
51 or

52 (b) a research study concerning the provision of benefits, services or
53 care coordination that is conducted by or on behalf of a local govern-
54 ment health or human services agency and is in compliance with applica-
55 ble local, state and federal laws relating to human subjects research.

1 5. Written agreement to disclose personal information. The disclosure
2 of personal information pursuant to this section shall only be made
3 subject to a written agreement between the parties involved in the
4 disclosure of the personal information, and such agreement shall:

5 (a) be approved by legal counsel and the chief information security
6 officer for each agency that is a party to the agreement, and the local
7 government's chief privacy officer, where such a position exists;

8 (b) provide that access to the personal information to be shared is
9 limited to employees or agents of the parties that require such access
10 to fulfill their job functions in relation to providing the benefits,
11 services and care coordination described in such agreement;

12 (c) describe the type of personal information to be shared, how it is
13 to be shared, and the use and purpose relating to specific benefits,
14 services or care coordination to be furthered by the disclosure;

15 (d) prohibit the agency to which personal information shall be
16 disclosed from redisclosing, publishing or otherwise revealing such
17 personal information without written permission of the disclosing agen-
18 cy, except where required by law, and require that such redisclosure be
19 in accordance with a written agreement subject to the terms set forth in
20 this subdivision; and

21 (e) impose requirements governing the secure transmission, storage,
22 use and access to the disclosed personal information that are no less
23 stringent than those established by the local government agency that
24 directs, manages, and has authority over a city's cyber defense, inves-
25 tigation, response, and policy.

26 6. Limitation of disclosure of personal information. Nothing in this
27 section shall be interpreted to authorize the disclosure of personal
28 information among or between agencies of a local government for any
29 other purpose than providing or making available benefits, services and
30 care coordination to its populace or conducting a research study pursu-
31 ant to paragraph (b) of subdivision four of this section, nor shall this
32 section be interpreted to authorize disclosure of personal information
33 for the purposes of investigating an offense as such term is defined in
34 subdivision one of section 10.00 of the penal law.

35 § 3. This act shall take effect immediately.